THIRD AMENDMENT AND AGREEMENT

THIS THIRD AMENDMENT AND AGREEMENT (this "**Agreement**") is entered into as of 1st March, 2021 (the "**Third Amendment Effective Date**"), by and among CrossBoundary Energy Ghana, a company limited by shares, registered in Ghana bearing Registration Number CS137952018 and having its registered address at No. 31 Ringway Estates, Asafoanye O. Broni, Accra, Accra Metropolitan, P.O. Box MN 595, Ghana ("**CBE Ghana**") and Kasapreko Company Limited, a company limited by shares, registered in Ghana bearing Registration Number C-31,575 and having its registered address at DTD #64 Off Spintex Road, Baatsonaa, Accra, Ghana ("**Customer**"), each a "**Party**" and together, the "**Parties**."

RECITALS

A. NVI Energy (Mauritius) Ltd (Ghana) ("**SolarAfrica**") and Customer entered into a Solar Services Agreement (as amended, the "**SSA**") dated on or about December 2, 2016 in connection with the design, construction and operation of a photovoltaic electricity generation system ("**Facility**") for the benefit of the Customer.

B. SolarAfrica and Customer amended the SSA by mutual agreement on May 31, 2017.

C. By virtue of the Completion Certificate dated October 18, 2019, signed by SolarAfrica and the Parties, and the Assignment, Assumption and Transfer Agreement effective the same date between affiliates of SolarAfrica and CBE Ghana, SolarAfrica's rights, title, and interest in the SSA and the Facility have been wholly transferred to CBE Ghana.

D. Customer confirmed and agreed in the Completion Certificate that the Facility was successfully commissioned on October 17, 2018 (the "**Phase I Commercial Operation Date**");

E. CBE Ghana and Customer amended the SSA by mutual agreement on 26 April 2019;

F. CBE Ghana and Customer amended the SSA by mutual agreement on 6 July 2020; and

G. The Parties agree to share the costs of interconnection works required to facilitate the installation of additional solar PV capacity and to adjust the Initial Term of the SSA accordingly.

NOW, THEREFORE, in consideration of the premises set forth above and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

1. **Definitions and Interpretation**.

1.1. "**Interconnection Works Contractor**" means the contractor selected by the Customer to carry out Interconnection Works on the Customer's existing switchboard to accommodate the interconnection of the solar PV system.

1.2. **"Interconnection Works Equipment Supplier"** means the equipment supplier selected by the Customer to supply the electrical equipment required for the Interconnection Works on the Customer's existing switchboard to accommodate the interconnection of the solar PV system.

1.3. "**Interconnection Works**" means the works as recorded in Annexure K hereto.

1.4. Unless otherwise defined in this Agreement, capitalized terms used in this Agreement have the respective meanings ascribed to them in the SSA. The rules of interpretation set forth in the SSA shall apply to this Agreement.

2. **SSA Amendments.** Unless expressly specified otherwise, the following amendments shall be incorporated as integral provisions to the SSA and shall be effective from the Third Amendment Effective Date:

2.1. Financing of Interconnection Works. The Customer's existing switchboard requires an expansion to accommodate the interconnection of the solar PV system. The parties herby agree to carry out the Interconnection Works in accordance with the terms set out in Annexure K.

2.2. Revision to Initial Term of the SSA. CBE Ghana has agreed to finance Customer's portion of the cost of the Interconnection Works by adjusting the *Initial Term of the SSA*. The duration of the *Initial Term* set forth in Part I of the SSA is hereby amended from period of 16 years and restated as a period of 18 years, starting from the Phase II Commercial Operation Date.

2.3. Liability for Interconnection Works. Customer indemnifies CBE Ghana against any claim of whatsoever nature brought in respect of the Interconnection Works.

2.4. Annexures: The following annexure is affixed to this Agreement and is agreed by the Parties effective as from the Third Amendment Effective Date.

- ANNEXURE K: TERMS FOR FINACNING OF INTERCONNECTION WORKS

3. **No Defaults.** No Party is in default under the SSA and, to the best of each Party's knowledge, no facts or circumstances exist which, with the passage of time or the giving of notice or both, would constitute a default or breach by any Party under the SSA. As of the Third Amendment Effective Date, except for any amounts accrued for Energy Output delivered or available to be delivered to Customer since the Phase I Commercial Operation Date and not yet paid, neither Party owes any amount to the other under the SSA, and each Party waives any claims it may have related to Energy Output or costs incurred by Customer prior to the Phase I Commercial Operation Date.

4. **CBE Notice Address**. All notices to Customer under this Agreement shall be sent to the address set forth in the SSA. All notices to CBE Ghana under the SSA or this Agreement shall be sent to General Counsel, CrossBoundary Energy, energynotices@crossboundary.com.

5. **No Modification to SSA**. Other than the amendment, assignments, consents and acknowledgments described in this Agreement, nothing in this Agreement is intended to modify, alter or rescind any of the terms or provisions of the SSA.

6. **Miscellaneous**. This Agreement shall be governed by the laws of the jurisdiction set forth in the SSA, without regard to principles of conflicts of law. The dispute resolution provisions set forth in the SSA shall apply to this Agreement. This Agreement shall inure to the benefit of and be binding upon each of the Parties and each of their respective successors and assigns. This Agreement may only be amended by a writing signed by all of the Parties. This Agreement may be executed in counterparts, each of which is deemed an original, but all of which constitutes one and the same agreement. Delivery of an executed counterpart of this Agreement electronically or by facsimile shall be effective as delivery of an original executed counterpart of this Agreement. This Agreement constitutes the entire agreement of the Parties relating to the subject matter hereof and supersedes all prior contracts, agreements or understandings with respect to the subject matter hereof, whether oral or written.

IN WITNESS WHEREOF, the Parties have each executed this Agreement as of the Third Amendment Effective Date.

KASAPREKO COMPANY LIMITED:

Signature:_____

Name: Richard Adjei

Title: CEO

Date: 1st March 2021

CROSSBOUNDARY ENERGY GHANA LIMITED:

Signature:_____

Name: Matthew Tilleard

Title: Managing Director

Date: 1st March 2021

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ANNEXURE K: TERMS FOR FINACNING OF INTERCONNECTION WORKS

As part of this Third Amendment Agreement, CrossBoundary Energy has agreed to finance the expansion of the Customer's existing switchboard to create a suitable interconnection point to accommodate the interconnection of the solar PV Facility.

The Customer will be responsible for engaging and contracting with the approved Interconnection Works Equipment Supplier and the approved Interconnection Works Contractor and for managing the installation of the switchboard expansion required to create a suitable interconnection point to accommodate the interconnection of the solar PV system to the Customer's power distribution system. Upon completion of the Interconnection Works, the Customer shall take complete ownership of the works and engage directly with the Interconnection Works Equipment Supplier and Interconnection Works Contractor regarding any defects or warranty claims.

The Customer's approved Interconnection Works Equipment Supplier is Enrogen Ltd, registered in England & Wales.

The Customer's approved Interconnection Works Contractor is G&J Technical Services, registered in Ghana. The key roles and responsibilities associated with these works are as follows:

1. Customer will enter into a contract directly with the Interconnection Works Equipment Supplier to procure the equipment required for the switchboard expansion based on the Customer's standard contracting forms and in accordance with Customer policies and procedures. The contract between Customer and the Interconnection Works Equipment Supplier will include provisions for the Interconnection Works Equipment Supplier to issue invoices to CBE Ghana for payment, subject to #4 below.
2. Customer will enter into a contract directly with the Interconnection Works Contractor to perform the works based on the Customer's standard contracting forms and in accordance with Customer policies and procedures. The contract between Customer and the Interconnection Works Contractor will include provisions for the Interconnection Works Contractor to issue invoices to CBE Ghana for payment, subject to #5 below.
3. Customer shall be responsible for the review and approval of the proposed design to ensure that the works are fit for purpose.
4. CBE Ghana will review and approve the quotation and invoices from the Interconnection Works Equipment Supplier as well as associated import duties, to ensure that the total amount is within the required budget for the equipment, which shall be limited to $48,500 (including all import duties, assumed to be 19%)
5. CBE Ghana will review and approve the quotation and invoices from the Interconnection Works Contractor, to ensure that the total amount is within the required budget for the installation, which shall be limited to $3,000.
6. Prior to payment of an invoice to the Interconnection Works Equipment Supplier by CBE Ghana, Customer will review the technical drawings and bill of materials provided by the Interconnection Works Equipment Supplier, and provide CBE Ghana with written approval and acceptance of this information and documentation.
7. Following receipt of written acceptance, CBE Ghana will pay the Interconnection Works Equipment Supplier directly.
8. Prior to payment of an invoice to the Interconnection Works Contractor by CBE Ghana, Customer will review the Interconnection Works completed, and provide CBE Ghana with written approval and acceptance of that work.
9. Following receipt of written acceptance, CBE Ghana will pay the Interconnection Works Contractor directly.
10. Any variation requests by the Interconnection Works Equipment Supplier or the Interconnection Works Contractor will require approval by both Customer and CBE Ghana.
11. Following completion of the Interconnection Works, Customer will issue CBE Ghana with a full and final written acceptance of the works carried out by the Interconnection Works Contractor.
12. Upon receipt of the final written acceptance from the Customer, CBE Ghana will make final payment to the Interconnection Works Contractor.
13. Customer accepts liability and responsibility for the Interconnection Works.

Overview of scope of the Interconnection Works:

Interconnection Works Equipment Supplier to supply equipment for the Interconnection Works, as per the quotation shown below:

ENROGEN

Quotation

Quotation No.	40001886
Customer No.	C00126
Document Date	22/09/2020
Valid Until	22/10/2020
Customer Ref.	PV Switchboard Mods r2
Customer Contact	
Account Manager	Kevin Griffiths

KASAPREKO COMPANY LIMITED
PO BOX DTD/64
ACCRA
GHANA

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Currency GBP

Item no.	Description	Qty	Unit Price	Line Total
Misc Electrical Components	1 bay panel to match existing * 800w 2510h 1050d * 6300A Busbar and connection plates * form 4 type 7 * 1 x ACB 2000A 100KA * Terasaki Draw out 4 pole manual with AGR BL11 trip unit * 1 x multifunction meter with cts	1	£26,332.00	£26,332.00
Freight	Dedicated Direct Shipping to Tema (C&F)	1	£2,750.00	£2,750.00
	Subtotal			29,082.00

Deliver To Address

Total Excl VAT	£29,082.00
VAT (0.00%)	£0.00
Total Inc VAT (GBP)	£29,082.00
Payment terms	Prior to Despatch

Enrogen Ltd
Registered in England & Wales. Registered Office: Electricity Building, Blenhiem Road, Pocklington, East Yorkshire YO42 1NR
Tel: +44 1759 307070 Email: mail@enrogen.com Web: https://www.enrogen.com/
Company Registration Number: 05363808 VAT Reg. No. GB856259883

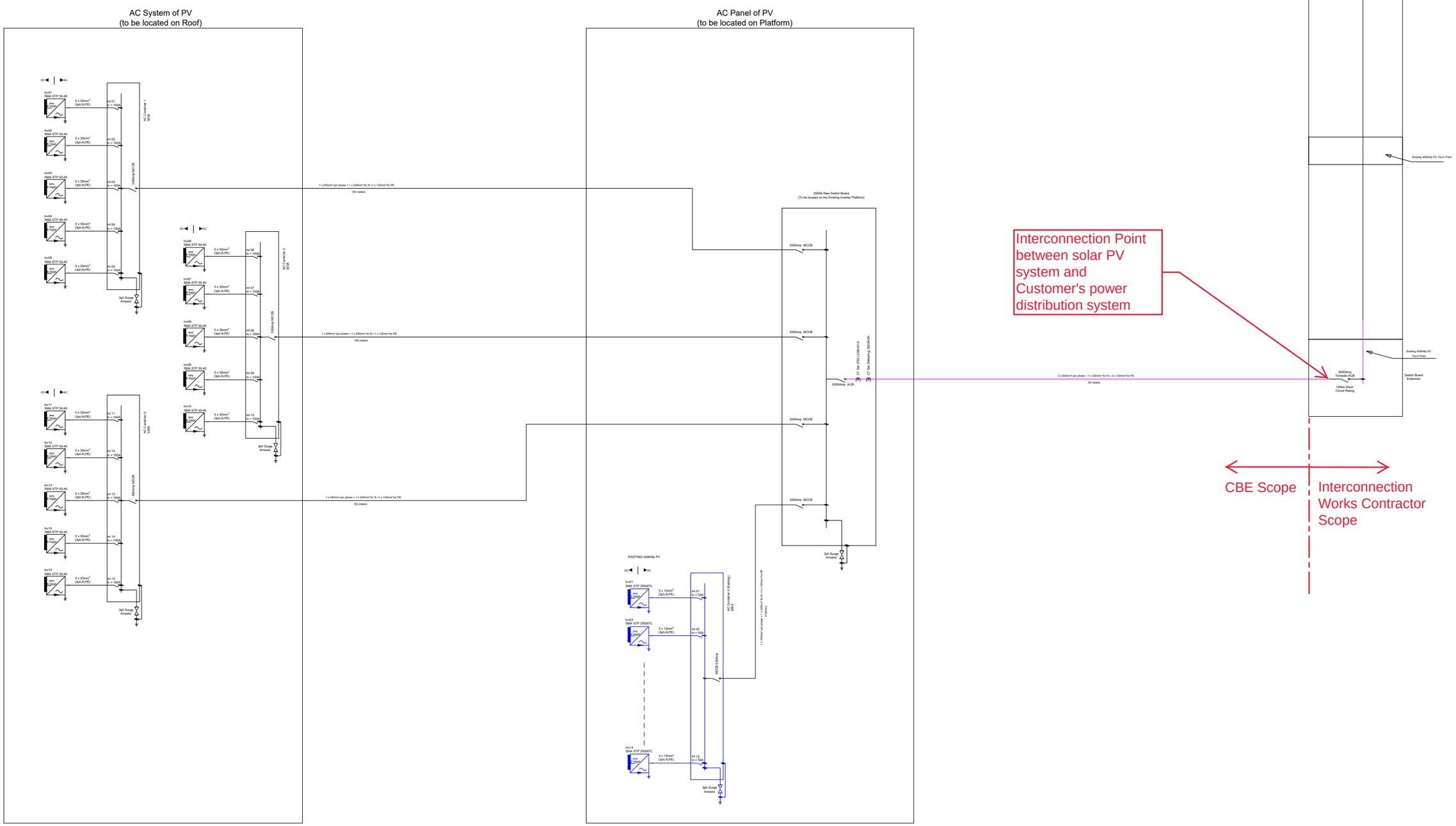
Interconnection Works Contractor to install the equipment listed above as directed by the Interconnection Works Equipment Supplier. Interconnection Works Contractor to modify and expand the Customer's existing switchboard and carry out all associated work that is necessary to create a suitable interconnection point to accommodate the interconnection of the solar PV system.

The cable from the solar PV system to be provided by CBE up to the Customer's switchboard. Interconnection Works Contractor to terminate this cable inside the Customer's switchboard as part of the Interconnection Works. This point of termination shall be the Interconnection Point between the solar PV system and the Customer's existing power distribution system. The scope boundary between CBE and the Interconnection Works Contractor is demarcated on the single line diagram attached to this Annexure (see next page).

Option 1_SLD-2020-11-11

STRICTLY CONFIDENTIAL

AC SINGLE LINE DIAGRAM_KASAPREKO 2ND PHASE PV SYSTEM



NAMENE SOLAR
03/11/2020, Frank